

(*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorneys' Fees

Plaintiffs seek attorneys' fees of \$1,016,666.67 representing one-third of the total settlement amount, relying on the common fund doctrine. Even under the common fund theory, however, the fee award should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the *Lodestar* cross-check as a method to determine whether the percentage allocated is reasonable. The Court stated: "If the multiplier calculated by means of a *Lodestar* cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not necessarily required to make such an adjustment." (Id. at p. 505.) Following typical practice, however, the Court will not consider the fee award at this preliminary approval stage, but reserves review for final approval.

Similarly, litigation costs in the amount of \$45,000.00 and the requested service payment of \$10,000.00 for each named plaintiff and class representative will be reviewed at the time of final approval. Criteria for evaluating representative payment requests are discussed in *Clark v. American Residential Services, LLC* (2009) 175 Cal.App.4th 785, 804-807.

The Settlement appears to be fair, adequate, and reasonable to the Class and falls within the range of reasonableness, subject only to objections that may be raised at the Final Approval Hearing. Good cause appearing, the Court makes the following orders and ruling.

Ruling

1. The settlement is sufficiently fair, reasonable, and adequate to justify preliminary approval. The motion is **granted**.
2. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order lodged October 6, 2025, attaching a copy of this ruling.
3. Counsel are ordered to obtain a hearing date for the motion for final approval from the Department clerk. Other dates in the scheduled notice process should track as appropriate to the hearing date. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs' counsel are ordered to submit a compliance statement one week before the compliance hearing date, which shall include the matters necessary to comply with Code of Civil Procedure section 384, subdivision (b).
4. Notwithstanding any contrary provision in the settlement agreement, 5% of the attorneys' fees are to be withheld by the administrator until released by the Court after review of the compliance statement.
5. The Court may issue a release of attorneys' fees through an unreported minute order without hearing upon review of the compliance statement representing full compliance with the Court's Final Order Approving Settlement.
6. No appearance is required at the hearing on July 15, 2026.

7. 9:00 AM CASE NUMBER: C22-02298
CASE NAME: ISAIAS MENDOZA MEDINA VS. DESERT PARKS LANDSCAPING, INC
HEARING IN RE: FINAL ACCOUNTING AND DISTRIBUTION
FILED BY:

TENTATIVE RULING:

Summary:

This hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on July 17, 2025, and Judgment riled on July 29, 2025.

Upon review of the declaration filed by Garvin Brown of ILYM , the Court determines that Plaintiff's Counsel has complied with the Court's order.

Good cause appearing, the Court makes the following order:

1. The Court finds that Plaintiff has complied with the Court's Order and Judgment.
2. No appearance is required at the hearing on July 15, 2026.

8. 9:00 AM CASE NUMBER: C23-00119
CASE NAME: KIERRA RUSSO VS. MARKSTEIN SALES COMPANY.,
HEARING IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

This hearing was set by the Court to determine compliance with the Court's Order re Final Approval of Class Action settlement filed on May 28, 2025.

Upon review of the declaration filed by Connor Tevin, the Class Action Settlement Administrator, the Court finds and determines that Plaintiff's Counsel has complied with the Court's order. Good cause appearing, the Court makes the following orders:

Ruling

1. The Court orders the release of the 5% retention of attorney's fees in the amount of \$7,166.67 to Plaintiff's Counsel. The Class Action Administrator shall release said fees no later than ten (10) days from the date of entry of this order.
2. The Court orders Plaintiff's Counsel to prepare final judgment and Notice of Entry of Judgment of this matter.
3. No appearance is required at the hearing on July 15, 2026.

9. 9:00 AM CASE NUMBER: C23-01450
CASE NAME: JEANIE BURTON VS. JOINN BIOLOGICS US INC.
HEARING ON MOTION IN RE: FINAL APPROVAL / ACCOUNTING
FILED BY:

TENTATIVE RULING: